



EVL1 — Introduction to Evidence and Proof

Module 8 — Corroboration

Lesson 1: Nature of Corroboration

Student Lesson Notes

WHAT IS CORROBORATION?

Opening Scenario

A woman reports to police in Kampala that she was raped by a man she knows. She gives a detailed and convincing account. She is the only witness — no one else saw the attack. The medical report is inconclusive. There is no other physical evidence. Can a Ugandan court convict based on the woman's testimony alone? This is the corroboration question.

Corroboration: Independent evidence that confirms and supports the testimony of a witness on a material particular — a point that is directly relevant to the accused's guilt.

R v Baskerville [1916] 2 KB 658, *Court of Criminal Appeal* — *persuasive authority in Uganda* — Corroboration must be independent testimony which affects the accused by connecting him with the crime. It must confirm in some material particular not only that the crime was committed but that the accused committed it.

Three Elements of Baskerville Corroboration

- 1. Independence:** The corroborating evidence must come from an independent source — NOT from the same witness whose testimony is being corroborated.
- 2. Implication of the Accused:** The evidence must connect the specific accused to the specific crime — not merely confirm that a crime occurred.
- 3. Material Particular:** The evidence must go to a material particular — something relevant to the accused's guilt, not a peripheral detail.

TEST: All three Baskerville requirements must be satisfied. Evidence satisfying only one or two is NOT corroboration in the Baskerville sense.

Why Corroboration Exists

Corroboration requirements exist because some categories of witness testimony carry particular risks of error, contamination, or false accusation — not because every witness in those categories lies, but because experience has shown the testimony carries inherent risks. Corroboration provides a safeguard ensuring a conviction is not based on one person's word alone.

WHY CORROBORATION IS REQUIRED

Three Traditional Categories

- Accomplice Evidence:** Testimony from a person involved in the commission of the crime. The accomplice may have incentives to lie, shift blame, or minimise their own role.
- Children's Evidence:** Testimony from children of tender years who may not fully understand the oath and whose accounts may be susceptible to suggestion or confusion.
- Sexual Offence Complainants:** Historically, courts were warned that complainants in sexual offence cases might fabricate allegations. This requirement has been significantly modified in modern Ugandan law.

Legal Requirement vs Judicial Warning

- Legal Requirement:** Court CANNOT convict without corroboration — acquittal follows even if the court believes the single witness.
- Judicial Warning:** Court warns itself of the dangers, considers whether corroboration exists, and may convict if satisfied the evidence is reliable enough — but must demonstrate in the judgment that the warning was given and the risks genuinely considered.

Modern Ugandan law has moved from absolute legal requirements to judicial warnings in most categories.

Ntambala v Uganda *Criminal Appeal No. 34 of 2015, Court of Appeal of Uganda* — Corroboration warnings must be genuine — courts must actually engage with the specific dangers and availability of corroboration, not merely recite a formula. Perfunctory warnings are vulnerable to challenge on appeal.

WHAT AMOUNTS TO CORROBORATION?

What CAN Amount to Corroboration

- Physical evidence independently connecting the accused to the crime — fingerprints, DNA, possession of the victim's property, physical injuries consistent with a specific attack.
- Independent witness testimony from a person who is not the complainant and has no connection to the complainant's account.
- Documentary and electronic evidence — text messages, call logs, mobile money records, CCTV footage, social media communications — that independently connect the accused to the complainant, scene, or time.
- The accused's deliberate lies about material matters — where the court is satisfied the accused deliberately lied about something material with no innocent explanation, the lie may show consciousness of guilt.

What CANNOT Amount to Corroboration

- The complainant's own earlier statements (recent complaint) — a witness cannot corroborate themselves. The recent complaint comes from the same source as the testimony being corroborated.
- One accomplice corroborating another — both are in the same unreliable category requiring independent corroboration.
- Evidence that only confirms a crime was committed without implicating the accused — medical evidence showing the complainant was injured does not satisfy Baskerville if it does not connect the accused to causing those injuries.

IMPORTANT: Recent complaint evidence is not without evidential value — it may be relevant to the complainant's credibility and explain subsequent behaviour — but it is NOT Baskerville corroboration because it fails the independence requirement.

Francis Xavier Kayemba v Uganda [1983] HCB 330, *High Court of Uganda* — Illustrates the Ugandan approach to evaluating whether evidence is sufficient to support a conviction — examining what is before the court and whether it reaches the necessary threshold.

LESSON SUMMARY — KEY POINTS

- ✓ Corroboration: independent evidence confirming a witness's testimony on a material particular and connecting the accused to the crime
- ✓ *R v Baskerville* [1916] 2 KB 658 — foundational Commonwealth case on corroboration, persuasive authority in Uganda
- ✓ Three Baskerville elements: independent source, implicates the accused, material particular — ALL THREE must be satisfied
- ✓ Three traditional categories requiring corroboration: accomplice evidence, children's evidence, sexual offence complainants
- ✓ Modern Uganda: moved from absolute legal requirement to judicial warning approach in most categories
- ✓ *Ntambala v Uganda* CA No. 34 of 2015 — warnings must be genuine, not formulaic

- ✓ CAN corroborate: physical evidence, independent witnesses, electronic evidence, accused's deliberate lies about material matters
- ✓ CANNOT corroborate: complainant's own earlier statements, one accomplice corroborating another, evidence only confirming the crime without implicating the accused

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. State the three elements of Baskerville corroboration from *R v Baskerville* [1916] 2 KB 658.
2. Can a complainant's recent complaint to a friend amount to Baskerville corroboration of their own testimony? Explain why or why not.
3. Can one accomplice corroborate another? Explain your answer.
4. What is the difference between a case where corroboration is a legal requirement and one where it requires only a judicial warning?
5. State the principle from *Ntambala v Uganda* Criminal Appeal No. 34 of 2015 regarding corroboration warnings.